

25CV04906 Edward Delava, et al. v. Volkswagen Group of America, Inc., et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-09-04

Motion: Mtn for Order that the Truth of the Matters in RFA, Set 1, served on E.Delava, be Deemed Admitted; Req for Monetary Sanctions; Mtn for Order that the Truth of the Matters in RFA, Set 1, served on A.Greenspan, be Deemed Admitted, etc; Mtns to Compel (6)

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Tentative Ruling: Edward Delava, et al. v. Volkswagen Group of America, Inc., et al

Case Number

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Case Type

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Hearing Date / Time

Fri, 09/04/2026 - 10:00

Nature of Proceedings

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Tentative Ruling

For the reasons set forth herein:

Should Edward Delava fail to file and serve a proposed response to the requests for admission that is in substantial compliance with Code of Civil Procedure section 2033.220, before the hearing on this motion, the motion for order that the truth of the matters in the requests for admissions, set one, be admitted, is granted.

Monetary Sanctions are awarded in favor of defendant Volkswagen Group of America, Inc. and against plaintiff Edward Delava and his attorney of record, Strategic Legal Practices, jointly and severally, in the amount of \$1,245.00, payable to counsel for Volkswagen Group of America, Inc. no later than October 16, 2026.

Should Angela Greenspan fail to file and serve a proposed response to the requests for admission that is in substantial compliance with Code of Civil Procedure section 2033.220, before the hearing on this motion, the motion for order that the truth of the matters in the requests for admissions, set one, be admitted, is granted.

Monetary Sanctions are awarded in favor of defendant Volkswagen Group of America, Inc. and against plaintiff Angela Greenspan and her attorney of record, Strategic Legal Practices, jointly and severally, in the amount of \$1,245.00, payable to counsel for Volkswagen Group of America, Inc. no later than October 16, 2026.

The Motion of Defendant Volkswagen Group of America, Inc. to Compel Plaintiff Edward Delava's Initial Discovery Responses to Form Interrogatories, Set One is granted.

Edward Delava shall serve verified code-compliant responses, without objections, no later than September 25, 2026.

Monetary Sanctions are awarded in favor of defendant Volkswagen Group of America, Inc. and against plaintiff Edward Delava and his attorney of record, Strategic Legal Practices, jointly and severally, in the amount of \$1,047.50, payable to counsel for Volkswagen Group of America, Inc. no later than October 16, 2026.

The Motion of Defendant Volkswagen Group of America, Inc. to Compel Plaintiff Angela Greenspan's Initial Discovery Responses to Form Interrogatories, Set One is granted.

Angela Greenspan shall serve verified code-compliant responses, without objections, no later than September 25, 2026.

Monetary Sanctions are awarded in favor of defendant Volkswagen Group of America, Inc. and against plaintiff Angela Greenspan and her attorney of record, Strategic Legal Practices, jointly and severally, in the amount of \$1,047.50, payable to counsel for Volkswagen Group of America, Inc. no later than October 16, 2026.

The Motion of Defendant Volkswagen Group of America, Inc. to Compel Plaintiff Edward Delava's Initial Discovery Responses to Special Interrogatories, Set One is granted.

Edward Delava shall serve verified code-compliant responses, without objections, no later than September 25, 2026.

Monetary Sanctions are awarded in favor of defendant Volkswagen Group of America, Inc. and against plaintiff Edward Delava and his attorney of record, Strategic Legal Practices, jointly and severally, in the amount of \$1,047.50, payable to counsel for Volkswagen Group of America, Inc. no later than October 16, 2026.

The Motion of Defendant Volkswagen Group of America, Inc. to Compel Plaintiff Angela Greenspan's Initial Discovery Responses to Special Interrogatories, Set One is granted.

Angela Greenspan shall serve verified code-compliant responses, without objections, no later than September 25, 2026.

Monetary Sanctions are awarded in favor of defendant Volkswagen Group of America, Inc. and against plaintiff Angela Greenspan and her attorney of record, Strategic Legal Practices, jointly and severally, in the amount of \$1,047.50, payable to

counsel for Volkswagen Group of America, Inc. no later than October 16, 2026.

The Motion of Defendant Volkswagen Group of America, Inc. to Compel Plaintiff Edward Delava's Initial Discovery Responses to Inspection Demands, Set One is granted.

Edward Delava shall serve verified code-compliant responses, without objections, no later than September 25, 2026.

Monetary Sanctions are awarded in favor of defendant Volkswagen Group of America, Inc. and against plaintiff Edward Delava and his attorney of record, Strategic Legal Practices, jointly and severally, in the amount of \$1,047.50, payable to counsel for Volkswagen Group of America, Inc. no later than October 16, 2026.

The Motion of Defendant Volkswagen Group of America, Inc. to Compel Plaintiff Angela Greenspan's Initial Discovery Responses to Inspection Demands, Set One is granted.

Angela Greenspan shall serve verified code-compliant responses, without objections, no later than September 25, 2026.

Monetary Sanctions are awarded in favor of defendant Volkswagen Group of America, Inc. and against plaintiff Angela Greenspan and her attorney of record, Strategic Legal Practices, jointly and severally, in the amount of \$1,047.50, payable to counsel for Volkswagen Group of America, Inc. no later than October 16, 2026.

Background:

This action commenced on August 7, 2025, by the filing of the Song-Beverly Consumer Warranty Act complaint by plaintiffs Edward Devala and Angela Greenspan (collectively "plaintiffs") against defendants Volkswagen Group of America, Inc. (VWGoA) and Santa Barbara Auto Group dba Audi Santa Barbara (Audi) related to a warranty contract on a 2024 Audi Q5 vehicle entered into on June 12, 2024. The allegations are typical of Song-Beverly Act cases.

On May 27, 2026, VWGoA filed the present eight motions arguing that plaintiffs have failed to serve any responses to: 1. Form Interrogatories, set one, (FIs), 2. Requests for Admissions, set one, (RFAs), 3. Special Interrogatories, set one, (SROGs), and 4. Inspection Demands, set one, (RFPs), that were served on plaintiffs February 9, 2026. The discovery responses are all attached to the corresponding declarations of VWGoA's counsel as Exhibit A. Proofs of service attached to the various discovery requests show that the requests were all properly served on plaintiffs' counsel via email.

Plaintiffs have not filed opposition or any other response to the present motions to compel.

Analysis:

Discovery

"Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may be obtained to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property." (Code Civ. Proc., § 2017.010.)

"A trial court must be mindful of the Legislature's preference for discovery over trial by surprise, [and] must construe the facts before it liberally in favor of discovery. . ." (Williams v. Superior Court (2017) 3 Cal.5th 531, 540.)

Requests for Admission

VWGoA seeks to have the RFAs be deemed admitted. The RFAs are identical for each plaintiff and consist of 28 requests.

RFAs "differ fundamentally from other forms of discovery. Rather than seeking to uncover information, they seek to eliminate the need for proof." (Murillo v. Superior Court (2006) 143 Cal.App.4th 730, 735.)

Code of Civil Procedure, section 2033.010 provides, in pertinent part: "Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties."

"The party to whom requests for admission have been directed shall respond in writing under oath separately to each request. Each response shall answer the substance of the requested admission, or set forth an objection to the particular request." (Code Civ. Proc. § 2033.210, subds. (a-b).

"If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

"(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

"(1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

"(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

"(b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).

"(c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280.)

As neither plaintiff has responded to the properly served RFAs, the motion will be granted unless they each file and serve a proposed response to the requests for admission that is in substantial compliance with Code of Civil Procedure section 2033.220, before the hearing on this motion.

Monetary sanctions

Misuses of the discovery process include: "Failing to respond or to submit to an authorized method of discovery." (Code Civ. Proc., § 2023.010, subd. (a).)

"The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2023.030, subd. (a).)

Despite the granting of continuances and attempts by VWGoA to meet and confer, plaintiffs failed to provide any discovery responses. Plaintiffs did not act with substantial justification, and no other circumstances make the imposition of sanctions unjust. Monetary sanctions are appropriate.

VWGoA seeks fees and costs of \$2,035.00 for each of the two motions. The time, for each, consists of 2 hours in preparation of this motion, at \$395 per hour, with anticipated time for reviewing an opposition, preparing a reply, and appearance at hearing of 3 hours. VWGoA also seeks \$60, each, for filing the motions. As there is no opposition, the court will reduce the anticipated time to 1 hour, for total sanctions of \$1,245.00 associated with each of the motions to compel responses to RFAs.

Form Interrogatories and Special Interrogatories

VWGoA seeks responses to FIs, set one, and SROGs, set one, from each plaintiff.

Code of Civil Procedure, section 2030.010 provides, "(a) Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by propounding to any other party to the action written interrogatories to be answered under oath. (b) An interrogatory may relate to whether another party is making a certain contention, or to the facts, witnesses, and writings on which a contention is based. An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact, or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial."

"Within 30 days after service of interrogatories, the party to whom the interrogatories are propounded shall serve the original of the response to them on the propounding party, unless on motion of the propounding party the court has shortened the time for response, or unless on motion of the responding party the court has extended the time for response." (Code Civ. Proc., § 2030.260, subd. (a).)

"If a party to whom interrogatories are directed fails to serve a timely response, the following rules apply:

"(a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

"(1) The party has subsequently served a response that is in substantial compliance with Sections 2030.210, 2030.220, 2030.230, and 2030.240.

“(2) The party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

“(b) The party propounding the interrogatories may move for an order compelling response to the interrogatories.

“(c) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).” (Code Civ. Proc., § 2030.290.)

The motion to compel responses to the FIs and the SROGs will be granted.

Plaintiffs’ failure to provide responses was without justification and no other circumstances make the imposition of sanctions unjust. As such, monetary sanctions are appropriate. VWGoA seeks \$1,837.50 in monetary sanctions for each of the motions. The court will impose sanctions of \$1,047.50 for each of the four motions based on 2.5 hours of reasonably necessary time at the rate of \$395 per hour plus a \$60 filing fee for each motion.

Requests for Production of Documents

Each of the sets of RFPs consists of 21 requests. The RFPs served on each plaintiff is identical.

Code of Civil Procedure, section 2031.010 provides, in pertinent part:

“(a) Any party may obtain discovery . . . by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of the party on whom the demand is made.

“(b) A party may demand that any other party produce and permit the party making the demand, or someone acting on the demanding party’s behalf, to inspect and to copy a document that is in the possession, custody, or control of the party on whom the demand is made.”

“Within 30 days after service of a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed shall serve the original of the response to it on the party making the demand, and a copy of the response on all other parties who have appeared in the action, unless on motion of the party making the demand, the court has shortened the time for response, or unless on motion of the party to whom the demand has been directed, the court has extended the time for response.” (Code Civ. Proc., § 2031.260, subd. (a).)

“If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the following rules shall apply:

“(a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

“(1) The party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280.

“(2) The party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

“(b) The party making the demand may move for an order compelling response to the demand.

“(c) Except as provided in subdivision (d), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey the order compelling a response, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to this sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).” (Code Civ. Proc., § 2031.300, subds. (a)-(c).)

The motion to compel responses to the RFPs will be granted.

Plaintiffs’ failure to provide responses was without justification and no other circumstances make the imposition of sanctions unjust. As such, monetary sanctions are appropriate. VWGoA seeks \$1,837.50 in monetary sanctions for each of the motions. The court will impose sanctions of \$1,047.50 for each of the two motions based on 2.5 hours of reasonably necessary time at the rate of \$395 per hour plus a \$60 filing fee for each motion.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

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